



SPONSOR: Rep. Griffith & Sen. Poore
Reps. Gorman, Hilovsky, K. Williams; Sens. Buckson,
Cruce, Hansen

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 168

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO NONCOMPLIANCE WITH
SENTENCING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter VII, Chapter 5, Title 11 of the Delaware Code by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 § 1312B. Noncompliance with sentencing order conditions of no contact.

4 (a) If a defendant knowingly breaches any condition of a no contact provision of the defendant's sentencing order,
5 that breach is a new crime and each breach is a separate charge. On conviction for a breach, the defendant is punished as
6 follows:

7 (1) If the defendant breached a no contact provision of a sentencing order that was for at least 1 felony charge,
8 the defendant is guilty of a class G felony.

9 (2) If the defendant breached a no contact provision of a sentencing order that was for at least 1 misdemeanor
10 charge, the defendant is guilty of a class A misdemeanor.

11 (b) Nothing in this section may interfere with or prevent any court from exercising that court's power to punish for
12 violations of probation.

SYNOPSIS

This Act makes it a class G felony if a person breaches a no contact provision of the person's sentencing order, where the sentence was for 1 or more felonies. This Act also makes it a class A misdemeanor if a person breaches a no contact provision of the person's sentencing order, where the sentence was for 1 or more misdemeanors and no felonies.